

3.2. Extent of opposition

R. 76(1) EPC (Art. 99(1) EPC 1973) provides, inter alia, that "notice of opposition shall be filed in a written reasoned statement". R. 76(2)(c) EPC (R. 55(c) EPC 1973) requires the notice of opposition to contain, inter alia, "a statement of the extent to which the European patent is opposed" (see also in this chapter IV.C.2.2.6).

In G 9/91 (OJ 1993, 408) the Enlarged Board clarified that the **power** of an opposition division or a board of appeal **to examine and decide** on the maintenance of a European patent under Art. 101 and 102 EPC 1973 (now merged in Art. 101 EPC) depends on the extent to which the patent is opposed in the notice of opposition (R. 55(c) EPC 1973; R. 76(2)(c) EPC). However, this principle is subject to a restriction: even if the opposition is expressly directed only against the subject-matter of an independent claim in a European patent, claims which depend on any such independent claim can nonetheless also be examined as to their patentability if the independent claim is eliminated in opposition or appeal proceedings, provided that the validity of these **dependent claims** is put in doubt prima facie by the information which is already available (cf. also T 443/93, T 31/08; the principles set out in G 9/91 have been followed by subsequent case law, e.g. T 1019/92, T 1066/92, T 711/04, T 1350/09; see also T 525/96 and T 907/03 in respect of claims of an auxiliary request).

If in a request the claims against which the opposition was directed have been deleted, that request and its subject-matter are allowable, because they are not a subject of the opposition proceedings (see e.g. T 2278/14).

The **statements** in the notice of opposition **relevant to the extent** to which the European patent is opposed should be interpreted in such a way that an addressee would understand them, taking into account the surrounding circumstances (T 376/90, OJ 1994, 906; see also T 1/88, in which the board based its interpretation of equivocal procedural acts on the "objective value of the declaration"; for a case where the accompanying letter contradicted the indication in Form 2300, see T 570/14).

In the light of G 9/91, the board in T 376/90 doubted that the general practice of interpreting the **absence of such statements** as an indication of the opponent's intention to oppose the patent concerned in its entirety could be continued. See however also T 764/06, in which the board concluded from the absence of a statement under R. 55(c) EPC 1973 that the patent was opposed only to a certain extent that the patent in suit was opposed in its entirety.

In T 938/03 the board highlighted that the extent to which a patent was opposed did not depend on the second requirement under R. 55(c) EPC 1973 (R. 76(2)(c) EPC), namely the indication of the grounds of opposition and the facts, evidence and arguments in support of these grounds. Rather, the extent to which a European patent is opposed was exclusively determined by what has been implicitly (see T 376/90, OJ 1994, 906) or explicitly indicated (in the case at issue by ticking the relevant box in EPO form 2300). See, however, the different opinion in T 737/92, requiring that claims are actually opposed, as distinct from being merely formally mentioned in the notice of opposition.

3.3. Scope of examination of grounds for opposition

According to the Enlarged Board in its opinion G 10/91 (OJ 1993, 420; see also G 9/91, OJ 1993, 408), an opposition division or a board of appeal is **not obliged to consider all the grounds for opposition** referred to in Art. 100 EPC, going beyond the grounds covered by the statement under R. 55(c) EPC 1973 (R. 76(2)(c) EPC), but may exceptionally do so. In opposition proceedings, the opposition division may, in application of Art. 114(1) EPC, raise a ground for opposition not covered by the opposition statement or consider such a ground raised by the opponent (or referred to by a third party under Art. 115 EPC) after the expiry of the time limit of Art. 99(1) EPC in cases where, **prima facie**, there are clear reasons to believe that it is relevant and would in whole or in part **prejudice the maintenance of the European patent**.

However, in opposition appeal proceedings a more restrictive application of Art. 114(1) EPC is generally justified. A fresh ground for opposition should only be raised by the board of appeal or admitted into the proceedings if the board considers it already *prima facie* highly relevant and the patentee agrees to its introduction (G 10/91). For details see chapter V.A.3.2.3 h) "Fresh ground for opposition on appeal".

In order to avoid any misunderstanding, the Enlarged Board stated in G 10/91 that in the case of **amendments** of the claims or other parts of the patent **in the course of opposition** or appeal proceedings, such amendments are to be fully examined as to their compatibility with the requirements of the EPC. As explained in G 3/14 (OJ 2015, A102), the term "amendments" has to be understood in the sense that the subject-matter to be examined must have some direct nexus with the amendment. See chapter IV.C.3.5 "Grounds raised against claims amended after grant" and chapter IV.C.5.2 "Scope of examination of amendments" (which also highlights the limited extent of examination of amended claims for compliance with Art. 84 EPC).

The wording of Art. 101(1) EPC ("at least one ground for opposition", as opposed to "the grounds for opposition" in Art. 101(1) EPC 1973) now makes it clear that the opposition division is not obliged to examine all the grounds for opposition. Reference is also made to this chapter IV.C.3.4 "Fresh grounds for opposition".

Following G 10/91, the board in T 274/95 (OJ 1997, 99) held that, if a ground for opposition was substantiated in the notice of opposition but was **subsequently not maintained** during the opposition division proceedings (in the case in question, a statement to that effect had been made by the opponent during oral proceedings), the opposition division was under no obligation to consider this ground further or to deal with it in its decision, unless the ground was sufficiently relevant to be likely to prejudice maintenance of the patent.

In T 223/95 the appellant had argued that the opposition division should take steps of its own motion to establish by investigation the level of knowledge of the person skilled in the art. The board observed that such an investigative approach would not be consistent with the character of the post-grant opposition proceedings under the EPC, which were in principle to be considered as **contentious proceedings** between parties normally

representing opposite interests, who should be given equally fair treatment. In the board's opinion, it was unrealistic to suppose that the opposition division could seek, gather and select evidence in an entirely impartial fashion; herein lay an essential distinction between the functions of the examining divisions and the opposition divisions. It was the responsibility of the opponent himself to present to the opposition division the facts, evidence and arguments in support of the grounds on which the opposition was based.

3.4. Fresh grounds for opposition

3.4.1 Fresh grounds examined exceptionally

In G 10/91 (OJ 1993, 420) the Enlarged Board held that in principle, the opposition division shall examine only such grounds for opposition, which have been properly submitted and substantiated in accordance with Art. 99(1) EPC 1973 in conjunction with R. 55(c) EPC 1973. Exceptionally, the opposition division may in application of Art. 114(1) EPC consider other grounds for opposition, which, prima facie, in whole or in part would seem to **prejudice the maintenance of the European patent** (see also the summary of G 10/91 in this chapter IV.C.3.3. above).

This **exercise of discretion** by the opposition division is reviewed by the boards in accordance with the principles set out in G 7/93, according to which boards of appeal should only overturn discretionary decisions of first instance if it is concluded that the first instance exercised its discretion according to the wrong principles, or without taking into account the right principles or in an unreasonable way (see e.g. T 1005/14, T 1965/17, T 3077/19).

3.4.2 Meaning of "fresh grounds for opposition"

In G 1/95 and G 7/95 ("Fresh grounds for opposition", OJ 1996, 615 and 626; consolidated proceedings), the Enlarged Board first defined the meaning of "grounds for opposition" within the framework of Art. 100 EPC, and paragraph (a) in particular, as well as in the light of G 10/91 (OJ 1993, 408 and 420, which had first used the term "a fresh ground for opposition" in the context of considering the proper application of Art. 114(1) EPC during opposition appeal proceedings – see also summary of G 10/91 in this chapter IV.C.3.3.).

It noted that the function of Art. 100 EPC is to provide a limited number of legal bases i.e. a limited number of objections, on which an opposition can be based, all "grounds for opposition" in Art. 100 EPC having their counterparts in other articles of the EPC which have to be met during the procedure up to grant. Whereas the grounds in Art. 100(b) EPC and 100(c) EPC each relate to a separate and clearly delimited legal basis for an opposition, the totality of the articles (Art. 52 to 57 EPC) within the meaning of Art. 100(a) EPC constitute a collection of different objections to the maintenance of the patent. The Enlarged Board further noted that the wording of R. 55(c) EPC 1973 (R. 76(2)(c) EPC) clearly showed the distinction made between the grounds, meaning as in Art. 100(a) EPC the legal reasons or legal bases, and their substantiation. Accordingly, in the context of Art. 99 and 100 EPC 1973 and R. 55(c) EPC 1973 (R. 76(2)(c) EPC), a "ground for opposition" had to be interpreted as meaning an **individual legal basis for**

objection to the maintenance of a patent. It followed in particular that Art. 100(a) EPC 1973 contained a collection of different legal objections (i.e. legal bases), or different grounds for opposition, and was not directed to a single ground for opposition.

In G 1/95 (OJ 1996, 615), the Enlarged Board went on to hold that, in a case where a patent had been opposed on the grounds set out in Art. 100(a) EPC, but the opposition had only been substantiated on the grounds of lack of novelty and lack of inventive step, the ground of unpatentable subject-matter based on Art. 52(1) and (2) EPC was a fresh ground for opposition.

In G 7/95 (OJ 1996, 626), it was held that in a case where a patent had been opposed under Art. 100(a) EPC on the ground that the claims lacked an inventive step in view of documents cited in the notice of opposition, the ground of lack of novelty vis-à-vis the said documents based on Art. 52(1) and 54 EPC was a fresh ground for opposition. However, the allegation that the claims lacked novelty in view of the closest prior art document could be considered in the context of deciding on the ground of lack of inventive step.

According to the board in T 514/04, the lack of novelty objection originally raised against claim 5, relating to a process for the preparation of a product, **did not extend to the products obtained from this process**, including the products of claims 1 to 4, and consequently the lack of novelty objection raised against claims 1 to 4 for the first time before the board was a fresh ground for opposition. See also T 1244/13.

In T 1959/09 the patentee (respondent) had requested the board to refer to the Enlarged Board of Appeal the question whether an existing ground for opposition **raised in respect of a different independent claim** amounts to a fresh ground of opposition as set out in G 10/91. In this respect, reference was made to T 514/04 (see above), where the board had stated that the extent and ground for opposition mentioned in R. 55(c) EPC 1973 (R. 76(2)(c) EPC) were connected in the sense that a specific claim(s) is/are objected to under a specific ground or grounds. The board did not recognise the necessity for such a referral since the ground for opposition pursuant to Art. 100(c) EPC as well as the question whether the requirements of Art. 123(2) EPC were met were clearly considered in the impugned decision. In addition, the board distinguished the present case, where claims 1 and 17 of the main request both belonged to the same category and virtually included the same subject-matter, from the case in T 514/04, where the question posed was whether a ground for opposition raised against a claim to a process applied equally to a claim to a product produced by said process. Hence, T 514/04 had no bearing on the case at issue.

The board noted in passing that there was no basis in G 10/91 for the general assumption that a ground for opposition raised against an independent claim may not subsequently be raised by the opponent against another independent claim, falling within the scope of the opposition. According to the board, T 514/04 neither mentioned nor elucidated the relevant passages in G 10/91 which supported that assumption. Actually, G 10/91 appeared to regard a new ground for opposition as being a "ground for opposition not covered by the statement" pursuant to R. 55(c) EPC 1973, no indication being given in that decision which would justify the inference that this should be construed far more broadly as meaning any

ground for opposition in respect of a specific given claim which was not covered by the statement pursuant to R. 55(c) EPC 1973 (R. 76(2)(c) EPC).

See also in this chapter IV.C.3.4.4 "Objections of lack of novelty and lack of inventive step".

For decisions dealing with the meaning of "fresh ground of opposition" in the context of appeal proceedings, see T 520/01 and T 620/08. See also chapter V.A.3.2.3 h) "Fresh ground for opposition on appeal".

3.4.3 Prima facie relevance

In T 736/95 (OJ 2001, 191) the ground referred to by the appellant under Art. 100(c) EPC had not been raised in the notice of opposition. The opposition division had decided not to admit the newly submitted ground, without giving the parties any indication that it considered it to be less pertinent. Having regard to G 10/91 (OJ 1993, 420) and G 1/95 (OJ 1996, 615), the board held that the department of first instance at least had to examine whether a fresh ground was **relevant** and could therefore prejudice maintenance of the patent. Since it did not do so, but based its refusal to admit the ground only on the fact that it had been raised late, the opposition division deprived the appellant of the opportunity to have the relevance of this ground, and thus its admissibility, examined on appeal.

In T 1340/15 the appellant argued that "prima facie" was to be understood as "at first glance" and that the legal question of whether or not the granted claims were covered by the original disclosure of the application (Art. 100(c) EPC) could not be solved prima facie. The board considered that following G 10/91 the opposition division only had to determine if there were, prima facie, clear reasons for considering the issue of added matter. The "prima facie" test was not to be interpreted so narrowly as to mean that it must be possible to definitely conclude "at first glance" that Art. 123(2) EPC was actually infringed. In the case at hand, in view of the evident ambiguity of the language of the relevant passage, the opposition division had a valid reason for admitting the new ground.

In T 1298/15, the board observed that it was established case law that the main criterion to be considered in relation to a late-filed ground of opposition was its prima facie relevance. That the opposition division had not applied any other criteria did not amount to an improper exercise of its discretion. The board ruled out falling back on other criteria set out in Art. 13(1) and (3) RPBA 2007 – as the appellant (opponent) had argued should be done – on the basis that opposition and appeal proceedings were fundamentally and structurally different in nature. See also e.g. T 3077/19 and T 346/16.

3.4.4 Objections of lack of novelty and lack of inventive step

In T 135/01, the board took the view that the mere observation in the course of an opposition procedure, whether by a party or the opposition division, that the subject-matter of a claim was new having regard to the prior art did not mean that **lack of novelty** was thereby introduced **as a ground for opposition**. Thus an assessment of inventive step generally began with a determination of the point of novelty, which implied a finding that the subject-matter of the claim was new. Treating such a routine affirmation of novelty as